

APPENDIX 1.

ORDER MADE BY THE PRESIDENT OF THE COURT
ON AUGUST 6th, 1931.

The President of the Permanent Court of International Justice,

Having regard to Article 48 of the Statute of the Court;

Having regard to Articles 13 and 23 of the Statute of the Court,
Makes the following order:

Whereas, by a special agreement dated October 30th, 1924, ratified on March 21st, 1928, and duly notified on March 29th, 1928, to the Registrar of the Court, the President of the French Republic and the Swiss Federal Council, in view of the fact that "France and Switzerland have been unable to agree in regard to the interpretation to be placed upon Article 435, paragraph 2, of the Treaty of Versailles, with its Annexes, and as it has proved impossible to effect the agreement provided for therein by direct negotiations, have decided to resort to arbitration in order to obtain this interpretation and for the settlement of all the questions involved by the execution of paragraph 2 of Article 435 of the Treaty of Versailles";

Whereas, under Article 1, paragraph 1, of this special agreement, "it shall rest with the Permanent Court of International Justice to decide whether, as between France and Switzerland, Article 435, paragraph 2, of the Treaty of Versailles, with its Annexes, has abrogated or is intended to lead to the abrogation of the provisions of the Protocol of the Conference of Paris of November 3rd, 1815, of the Treaty of Paris of November 20th, 1815, of the Treaty of Turin of March 16th, 1816, and of the Manifesto of the Sardinian Court of Accounts of September 9th, 1829, regarding the customs and economic régime of the free zones of Upper Savoy and the Pays de Gex, having regard to all facts anterior to the Treaty of Versailles, such as the establishment of the Federal Customs in 1849, which are considered relevant by the Court";

Whereas, under paragraph 2 of the same article of the special agreement, "the High Contracting Parties agree that the Court, as soon as it has concluded its deliberation on this question, and before pronouncing any decision, shall accord to the two Parties a reasonable time to settle between themselves the new régime to be applied in those districts, under such conditions as they may consider expedient, as provided in Article 435, paragraph 2, of the said Treaty";

Whereas, under Article 2, paragraph 1, of the special agreement, "failing the conclusion and ratification of a convention between the two Parties within the time specified, the Court shall, by means of

a single judgment rendered in accordance with Article 58 of the Court's Statute, pronounce its decision in regard to the question formulated in Article 1 and settle for a period to be fixed by it having regard to present conditions, all the questions involved by the execution of paragraph 2 of Article 435 of the Treaty of Versailles";

Whereas, under Article 4, paragraph 1, of the special agreement, "should the Court, in accordance with Article 2, be called upon itself to settle all the questions involved by the execution of Article 435, paragraph 2, of the Treaty of Versailles, it shall grant the Parties reasonable times for the production of all documents, proposals and observations which they may see fit to submit to the Court for the purposes of this settlement and in reply to those submitted by the other Party";

Whereas, in the recitals of an order made on August 19th, 1929, the Permanent Court of International Justice informed the Parties of the results of its deliberation upon the question formulated in Article 1, paragraph 1, of the special agreement, and granted them a period of time ending on May 1st, 1930, to settle between themselves the new régime to be applied in the territories referred to in Article 435, paragraph 2, of the Treaty of Versailles;

Whereas the Court was notified that it had proved impossible to conclude the contemplated agreement between the two Governments within the period of time thus granted, and as the procedure provided for in Articles 2 and 4 of the special agreement had to take its course;

Whereas, by an order dated May 3rd, 1930, the President of the Permanent Court of International Justice accordingly decided to grant to the Government of the French Republic and to the Government of the Swiss Confederation, for the production firstly of the documents, proposals and observations, and secondly of the replies provided for by Article 4, paragraph 1, of the special agreement, two time-limits expiring respectively on July 31st, 1930, and September 30th, 1930;

Whereas, by its order of December 6th, 1930, the Court accorded "to the Government of the French Republic and to the Government of the Swiss Confederation a period expiring on July 31st, 1931, which might be extended at the request of both Parties, to settle between themselves the matter of importations free of duty or at reduced rates across the Federal customs line and also any other point concerning the régime of the territories referred to in Article 435, paragraph 2, of the Treaty of Versailles with which they may see fit to deal"; as, in the same order, the Court stated "that at the expiration of the period granted or of any prolongation thereof, the Court will deliver judgment at the request of either Party, the President being empowered to grant the two Governments the necessary periods of time for the presentation beforehand of any written or oral observations";

Whereas, at the expiration of this period, the Court had received no request from the two Parties for an extension of time;

Whereas, on the other hand, the Government of the Swiss Confederation, by a communication dated July 29th, 1931, has informed the Court that the negotiations referred to in paragraph 1 of the operative part of the order of December 6th, 1930, have proved unsuccessful; as this communication is to be regarded as constituting the "request" mentioned in the order; as, moreover, by a communication dated July 30th, 1931, the Government of the French Republic has informed the Court that the French Ambassador at Berne had received from the Federal Political Department a note terminating the said negotiations;

Whereas, accordingly, the requisite conditions for the continuation of the proceedings are fulfilled and it now rests with the Court to deliver judgment as provided in the said order;

Whereas, under the above-mentioned order of December 6th, 1930, power to fix the periods of time therein mentioned has been delegated by the Court to the President;

Whereas these times cannot be fixed without regard more particularly to the exigencies of the Court's work as a whole;

Whereas, on the other hand, according to decisions taken on November 22nd and December 4th, 1930, the Court, after deliberation, has recognized that the Court as then constituted must continue to deal with the case of the free zones and held that the judge who was then acting as President must continue to exercise his functions for the purpose of the said case,

THE PRESIDENT OF THE PERMANENT COURT OF INTERNATIONAL JUSTICE,

In agreement with the said judge, and after hearing the Agents of the two Parties concerned;

Whereas it is desirable that, before giving judgment in accordance with the above-mentioned order, the Court should have before it any further observations which the Parties may desire to submit either orally or in writing; as these observations are not to have the character of a third complete written and oral procedure not provided for in the special agreement, but are intended to enable the Court to take into account in its future judgment any new facts having arisen subsequent to the termination of the procedure before it in 1930 and prior to October 1st, 1931;

Whereas it is necessary that the Court should deliver the required judgment before the end of the session now in progress,

Decides :

To grant to the Government of the Swiss Confederation and to the Government of the French Republic a period of time expiring on September 30th, 1931, for the submission to the Court in writing of any further observations regarding the case set out in the special agreement concluded between the said Governments on October 30th, 1924 ;

To hold on a day in October, 1931, to be fixed later, a public hearing at which the representatives of each of the said Governments may reply to any written observations which may have been filed as above stated on behalf of the other Government.

Done in French and English, the French text being authoritative, at the Peace Palace, The Hague, this sixth day of August, nineteen hundred and thirty-one, in three copies, one of which shall be placed in the Archives of the Court and the others transmitted to the Agents of the Government of the French Republic and of the Swiss Federal Government respectively.

(Signed) M. ADATCI,
President.

(Signed) Å. HAMMARSKJÖLD,
Registrar.